

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3934

By: Smith of the House

and

Pederson of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to professions and occupations;
12 amending 59 O.S. 2021, Section 328.3, as last amended
13 by Section 2, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
14 2025, Section 328.3), which relates to the practice
15 of dentistry definitions; updating certain
16 definitions; amending 59 O.S. 2021, Section 328.17,
17 as amended by Section 3, Chapter 273, O.S.L. 2025 (59
18 O.S. Supp. 2025, Section 328.17), which relates to
19 standing committees; adding a reference to the Dental
20 Practice Committee; amending 59 O.S. 2021, Section
21 328.19, as last amended by Section 4, Chapter 273,
22 O.S.L. 2025 (59 O.S. Supp. 2025, Section 328.19),
23 which relates to acts constituting practice of
24 dentistry; requiring auxiliary health care providers
 to limit practice within scope of dentistry; amending
 59 O.S. 2021, Section 328.21, as last amended by
 Section 5, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
 2025, Section 328.21), which relates to application
 of dental licensure; updating approved accredited
 programs; amending 59 O.S. 2021, Section 328.22, as
 amended by Section 3, Chapter 220, O.S.L. 2023 (59
 O.S. Supp. 2025, Section 328.22), which relates to
 specialty licenses; specifying requirements to
 represent oneself as a dental specialist; amending 59
 O.S. 2021, Section 328.23, which relates to temporary
 licensing of dentists and dental hygienists; updating
 the required examination; amending 59 O.S. 2021,

1 Section 328.23a, as last amended by Section 4,
2 Chapter 46, O.S.L. 2024 (59 O.S. Supp. 2025, Section
3 328.23a), which relates to special volunteer licenses
4 for dentist and dental hygienist; allowing dental
5 assistants to work under certain procedures; amending
6 59 O.S. 2021, Section 328.24, as last amended by
7 Section 6, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
8 2025, Section 328.24), which relates to dental
9 assistant permits; allowing specific exemptions for
10 dental assistants to work outside of the direct
11 supervision of a dentist; amending 59 O.S. 2021,
12 Section 328.29a, as last amended by Section 11,
13 Chapter 273, O.S.L. 2025 (59 O.S. Supp. 2025, Section
14 328.29a), which relates to dental assistants;
15 updating language; amending 59 O.S. 2021, Section
16 328.31, which relates to Board of Dentistry
17 requirements; removing requirement to publish an
18 annual summary of the registry; amending 59 O.S.
19 2021, Section 328.31b, as last amended by Section 13,
20 Chapter 273, O.S.L. 2025 (59 O.S. Supp. 2025, Section
21 328.31b), which relates to maintenance and retention
22 of written records; removing requirements of
23 maintaining certain records; amending 59 O.S. 2021,
24 Section 328.34, as amended by Section 6, Chapter 220,
O.S.L. 2023 (59 O.S. Supp. 2025, Section 328.34),
which relates to the scope of practice for dental
hygienists; updating scope of practice; amending 59
O.S. 2021, Section 328.54, which relates to the
practice of dentistry via internet; allowing for a
patient of record to be established under certain
circumstances; creating procedures for foreign
trained dentist licensure; providing for
codification; providing an effective date; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 328.3, as
last amended by Section 2, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
2025, Section 328.3), is amended to read as follows:

1 Section 328.3. As used in the State Dental Act, the following
2 words, phrases, or terms, unless the context otherwise indicates,
3 shall have the following meanings:

4 1. "Accredited dental college" means an institution whose
5 dental educational program is accredited by the Commission on Dental
6 Accreditation of the American Dental Association, or the Commission
7 on Dental Accreditation of Canada (CADA) or another accrediting
8 association recognized by the United States Department of Education;

9 2. "Accredited dental hygiene program" means a dental hygiene
10 educational program which is accredited by the Commission on Dental
11 Accreditation of the American Dental Association, or the Commission
12 on Dental Accreditation of Canada (CADA) or another accrediting
13 association recognized by the United States Department of Education;

14 3. "Accredited dental assisting program or class" means a
15 dental assisting program which is accredited by the Commission on
16 Dental Accreditation of the American Dental Association or another
17 accrediting association recognized by the United States Department
18 of Education or a class approved by the Board of Dentistry;

19 4. "Advanced procedure" means a dental procedure for which a
20 dental hygienist has received special training in a course of study
21 approved by the Board;

22 5. "Board" means the Board of Dentistry;
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1 6. "Certified dental assistant" means a dental assistant who
2 has earned and maintains current certified dental assistant
3 certification from the Dental Assisting National Board (DANB);

4 7. "Coronal polishing" means a procedure limited to the removal
5 of plaque and stain from exposed tooth surfaces, utilizing a slow
6 speed hand piece with a prophylaxis/polishing cup or brush and polishing
7 agent and is not prophylaxis. To be considered prophylaxis,
8 examination for calculus and scaling must be done by a dental
9 hygienist or dentist;

10 8. "Deep sedation" means a drug-induced depression of
11 consciousness during which patients cannot be easily aroused but
12 respond purposefully following repeated or painful stimulation. The
13 ability to independently maintain ventilator function may be
14 impaired. Patients may require assistance in maintaining a patent
15 airway, and spontaneous ventilation may be inadequate.
16 Cardiovascular function is usually maintained;

17 9. "Dentistry" means the practice of dentistry in all of its
18 branches;

19 10. "Dentist" means a graduate of an accredited dental college
20 who has been issued a license by the Board to practice dentistry as
21 defined in Section 328.19 of this title;

22 11. "Dental ambulatory surgical center (DASC)" means a facility
23 that operates exclusively for the purpose of furnishing outpatient
24 surgical services to patients. A DASC shall have the same

1 privileges and requirements as a dental office and additionally must
2 be an accredited facility by the appropriate entity;

3 12. "Dental appliance" means a dental appliance, prosthetic
4 denture, bridge, restoration, or other device made for an individual
5 patient for a purpose listed in Section 328.19 of this title;

6 13. "Dental office" means an establishment owned and operated
7 by a dentist for the practice of dentistry, which may be composed of
8 reception rooms, business offices, private offices, laboratories,
9 and dental operating rooms where dental operations are performed;

10 14. "Dental hygiene" means the science and practice of the
11 promotion of oral health and prevention and treatment of oral
12 disease through the provision of educational, therapeutic, clinical,
13 and preventive services;

14 15. "Dental hygienist" means an individual who has fulfilled
15 the educational requirements and is a graduate of an accredited
16 dental hygiene program and who has passed an examination and has
17 been issued a license by the Board and who is authorized to practice
18 dental hygiene as defined in this section;

19 16. "Dental assistant" means an individual working for a
20 dentist, under the dentist's general, direct supervision or direct
21 visual supervision, and performing duties in the dental office or a
22 treatment facility including the limited treatment of patients in
23 accordance with the provisions of the State Dental Act. ~~A dental~~
24 ~~assistant may assist a dentist with the patient; provided, this~~

1 ~~shall be done only under the direct supervision or direct visual~~
2 ~~supervision and control of the dentist and only in accordance with~~
3 ~~the educational requirements~~ and rules promulgated by the Board;

4 17. "Dental laboratory" means a location, whether in a dental
5 office or not, where a dentist or a dental laboratory technician
6 performs dental laboratory technology;

7 18. "Dental laboratory technician" means an individual whose
8 name is duly filed in the official records of the Board, which
9 authorizes the technician, upon the laboratory prescription of a
10 dentist, to perform dental laboratory technology, which services
11 must be rendered only to the prescribing dentist and not to the
12 public;

13 19. "Dental laboratory technology" means using materials and
14 mechanical devices for the construction, reproduction or repair of
15 dental restorations, appliances or other devices to be worn in a
16 human mouth;

17 20. "Dental specialty" means a specialized practice of a branch
18 of dentistry, recognized by the Board, where the dental college and
19 specialty program are accredited by the Commission on Dental
20 Accreditation (CODA), or a dental specialty recognized by the Board,
21 requiring a minimum number of hours of approved education and
22 training and/or recognition by a nationally recognized association
23 or accreditation board;

1 21. "Direct supervision" means the supervisory dentist is in
2 the dental office or treatment facility and, during the appointment,
3 personally examines the patient, diagnoses any conditions to be
4 treated, and authorizes the procedures to be performed by a dental
5 hygienist or dental assistant. The supervising dentist is
6 continuously on-site and physically present in the dental office or
7 treatment facility while the procedures are being performed and,
8 before dismissal of the patient, evaluates the results of the dental
9 treatment;

10 22. "Direct visual supervision" means the supervisory dentist
11 has direct ongoing visual oversight which shall be maintained at all
12 times during any procedure authorized to be performed by a dental
13 assistant;

14 23. "Expanded duty" means a dental procedure for which a dental
15 assistant has received special training in a course of study
16 approved by the Board;

17 24. "Fellowship" means a program designed for post-residency
18 graduates to gain knowledge and experience in a specialized field;

19 25. "General anesthesia" means a drug-induced loss of
20 consciousness during which patients are not arousable, even by
21 painful stimulation. The ability to independently maintain
22 ventilator function is often impaired. Patients often require
23 assistance in maintaining a patent airway, and positive pressure
24 ventilation may be required because of depressed spontaneous

1 ventilation or drug-induced depression of neuromuscular function.

2 Cardiovascular function may be impaired;

3 26. "General supervision" means the supervisory dentist has
4 diagnosed any conditions to be treated within the past thirteen (13)
5 months, has personally authorized the procedures to be performed by
6 a dental hygienist, and will evaluate the results of the dental
7 treatment within a reasonable time as determined by the nature of
8 the procedures performed, the needs of the patient, and the
9 professional judgment of the supervisory dentist. General
10 supervision may only be used to supervise a dental hygienist and may
11 not be used to supervise a dental assistant except as provided by
12 subsection I of Section 328.24 and Section 328.58 of this title;

13 27. "Indirect supervision" means the supervisory dentist is in
14 the dental office or treatment facility and has personally diagnosed
15 any conditions to be treated, authorizes the procedures to be
16 performed by a dental hygienist, remains in the dental office or
17 treatment facility while the procedures are being performed, and
18 will evaluate the results of the dental treatment within a
19 reasonable time as determined by the nature of the procedures
20 performed, the needs of the patient, and the professional judgment
21 of the supervisory dentist. Indirect supervision may not be used
22 for a dental assistant;

23 28. "Investigations" means an investigation proceeding,
24 authorized under Sections 328.15A and 328.43a of this title, to

1 investigate alleged violations of the State Dental Act or the rules
2 of the Board;

3 29. "Laboratory prescription" means a written description,
4 dated and signed by a dentist, of dental laboratory technology to be
5 performed by a dental laboratory technician;

6 30. "Minimal sedation" means a minimally depressed level of
7 consciousness, produced by a pharmacological method, that retains
8 the patient's ability to independently and continuously maintain an
9 airway and respond normally to tactile stimulation and verbal
10 command. Although cognitive function and coordination may be
11 modestly impaired, ventilator and cardiovascular functions are
12 unaffected;

13 31. "Mobile dental anesthesia provider" means a licensed and
14 anesthesia-permitted dentist, physician or Certified Registered
15 Nurse Anesthetist (CRNA) that has a mobile dental unit and provides
16 anesthesia in dental offices and facilities in the state;

17 32. "Mobile dental clinic" means a permitted motor vehicle or
18 trailer utilized as a dental clinic, and/or that contains dental
19 equipment and is used to provide dental services to patients on-site
20 and shall not include a mobile dental anesthesia provider. A mobile
21 dental clinic shall also mean and include a volunteer mobile dental
22 facility that is directly affiliated with a church or religious
23 organization as defined by Section 501(c)(3) or 501(d) of the United
24 States Internal Revenue Code, the church or religious organization

1 with which it is affiliated is clearly indicated on the exterior of
2 the volunteer mobile dental facility, and such facility does not
3 receive any form of payment either directly or indirectly for work
4 provided to patients other than donations through the affiliated
5 church or religious organization; provided, that the volunteer
6 mobile dental facility shall be exempt from any registration fee
7 required under the State Dental Act;

8 33. "Moderate sedation" means a drug-induced depression of
9 consciousness during which patients respond purposefully to verbal
10 commands, either alone or accompanied by light tactile stimulation.
11 No interventions are required to maintain a patent airway, and
12 spontaneous ventilation is adequate. Cardiovascular function is
13 usually maintained;

14 34. "Prophylaxis" means the removal of any and all calcareous
15 deposits, stains, accretions or concretions from the supragingival
16 and subgingival surfaces of human teeth, utilizing instrumentation
17 by scaler or periodontal curette on the crown and root surfaces of
18 human teeth including rotary or power-driven instruments. This
19 procedure may only be performed by a dentist or dental hygienist;

20 35. "Patient" or "patient of record" means an individual who
21 has given a medical history and has been examined and accepted by a
22 dentist for dental care;

23 36. "Residencies" are programs designed for advanced clinical
24 and didactic training in general dentistry or other specialties or

1 other specialists at the post-doctoral level recognized by the
2 Commission on Dental Accreditation (CODA) or the Board;

3 37. "Supervision" means direct supervision, direct visual
4 supervision, indirect supervision or general supervision;

5 38. "Teledentistry" means the remote delivery of dental patient
6 care via telecommunications and other technology for the exchange of
7 clinical information and images for dental consultation, preliminary
8 treatment planning and patient monitoring; and

9 39. "Treatment facility" means:

- 10 a. a federal, tribal, state or local public health
11 facility,
- 12 b. a Federally Qualified Health Center (FQHC),
- 13 c. a private health facility,
- 14 d. a group home or residential care facility serving the
15 elderly, disabled or juveniles,
- 16 e. a hospital or dental ambulatory surgery center (DASC),
- 17 f. a nursing home,
- 18 g. a penal institution operated by or under contract with
19 the federal or state government,
- 20 h. a public or private school,
- 21 i. a patient of record's private residence,
- 22 j. a mobile dental clinic,
- 23 k. a church with a non-profit clinic,

1 l. a dental college, dental program, dental hygiene
2 program or dental assisting program accredited by the
3 Commission on Dental Accreditation, or

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5 m. such other places as are authorized by the Board.

6 SECTION 2. AMENDATORY 59 O.S. 2021, Section 328.17, as
7 amended by Section 3, Chapter 273, O.S.L. 2025 (59 O.S. Supp. 2025,
8 Section 328.17), is amended to read as follows:

9 Section 328.17. A. 1. The Board of Dentistry shall have the
10 following standing committees that shall meet once per year and
11 other times as needed to study issues affecting the practice of
12 dentistry and the safety of the public and to make recommendations
13 to the Board:

- 14 a. Dental Practice Committee,
- 15 b. Anesthesia Committee,
- 16 c. Specialty Practice Committee,
- 17 d. Historical and Retirement Committee, and
- 18 e. Assistants, Dental Labs and Other Auxiliary Personnel
19 Committee.

20 2. Each committee shall be cochaired by a current or past Board
21 member to be appointed by the Board President with approval by the
22 Board and a member of a statewide organization representing dentists
23 as recommended by such organization.

1 3. Each committee may have up to ten committee members with the
2 exception of the Dental Practice and Anesthesia ~~Committee~~ Committees
3 which may have up to eighteen members, exclusive of the cochairs.

4 4. The Board President, with approval of the Board, shall
5 appoint all committee members. One-half (1/2 or 50%) of the
6 committee members shall be recommended by the Board and one-half
7 (1/2 or 50%) of the committee members shall be recommended to the
8 Board President by a statewide organization representing dentists.

9 5. Committee members shall be on staggered three-year terms and
10 shall serve at the pleasure of the Board.

11 B. There shall be a Dental Hygiene Advisory Committee to be
12 composed of the following members:

13 1. One current dental hygiene member of the Board;

14 2. Two dental hygienists recommended by the Board and two
15 dental hygienists recommended by a statewide organization
16 representing dental hygienists;

17 3. The Committee shall have the following functions:

18 a. to develop and propose recommendations to the Board
19 regarding the education, examination, licensure, and
20 regulation of dental hygienists,

21 b. to advise the Board in rulemaking regarding dental
22 hygiene,

23 c. to hold meetings at least annually, but not more than
24 six (6) times a year, and

d. to work directly with the Allied Dental Education Committee in reviews and recommendations for equivalent dental hygiene programs; and

4. Members of the Committee shall be appointed by the Board and shall serve a term of three (3) years. Appointments shall be made so that approximately one-third (1/3 or 33%) of the Committee is reappointed at any given time. Members may be appointed for consecutive terms if recommended by the Board President and approved by the Board.

C. There shall be an Allied Dental Education Committee.

1. The Board President shall appoint all members of the Allied Dental Education Committee upon approval by the Board;

2. The Allied Dental Education Committee shall:

a. review the standards and equivalency of in-state and out-of-state dental and auxiliary program requirements and make recommendations to the Board,

b. evaluate individual credentials and programs for the purpose of issuing dental assistant expanded duty permits and dental hygiene advanced procedure permits from persons holding out-of-state licenses and permits based on CODA or DANB programs and criteria as defined by the State Dental Act and other statutes and shall make recommendations to the Board,

- 1 c. recommend standards and guidelines and review criteria
2 for all expanded duty programs or courses for dental
3 assistants from CODA approved programs and non-CODA
4 approved providers and advanced procedures of dental
5 hygienists from CODA approved programs or training and
6 non-CODA approved programs or training to the Board,
7 and
8 d. recommend and develop guidelines for classroom,
9 electronic media and other forms of education and
10 testing;

11 3. The Committee shall meet as deemed necessary by the Board
12 President; and

13 4. The Committee may have up to ten (10) members of whom three
14 shall have a background in dental education. The Committee shall be
15 composed of:

- 16 a. the Board President or his or her designee who must be
17 a current or past Board Member,
18 b. the hygiene member of the Board or their designee who
19 must be a current or past Board Member,
20 c. the Dean of the University of Oklahoma College of
21 Dentistry or his or her designee, and
22 d. up to seven at-large members, one of which must be an
23 educator and one of which must have a current
24 Certified Dental Assistant Permit.

1 D. The Board President shall have the authority to appoint
2 other ad hoc committees as needed.

3 E. All Committee members of standing committees, the Hygiene
4 Committee and the Allied Dental Education Committee shall serve
5 staggered three-year terms and serve at the pleasure of the Board.

6 SECTION 3. AMENDATORY 59 O.S. 2021, Section 328.19, as
7 last amended by Section 4, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
8 2025, Section 328.19), is amended to read as follows:

9 Section 328.19. A. The following acts by any person shall be
10 regarded as practicing dentistry within the meaning of the State
11 Dental Act:

12 1. Representing oneself to the public as being a dentist or as
13 one authorized to practice dentistry;

14 2. Representing oneself to the public as being able to diagnose
15 or examine clinical material or contract for the treating thereof;

16 3. Representing oneself as treating or professing to treat by
17 professional instructions or by advertised use of professional
18 equipment or products;

19 4. Representing oneself to the public as treating any of the
20 diseases or disorders or lesions of the oral cavity, teeth, gums,
21 maxillary bones, and associate structures;

22 5. Removing human teeth;

23 6. Repairing or filling cavities in human teeth;

24 7. Correcting or attempting to correct malposed teeth;

1 8. Administering anesthetics, general or local;

2 9. Treating deformities of the jaws and adjacent structures;

3 10. Using x-ray and interpreting dental x-ray film;

4 11. Offering, undertaking or assisting, by any means or
5 methods, to remove stains, discolorations, or concretions from the
6 teeth; provided, that this paragraph shall not preclude or prohibit
7 the sale of any teeth whitening kit designed for self-administration
8 as approved by the United States Food and Drug Administration;

9 12. Operating or prescribing for any disease, pain, injury,
10 deficiency, deformity, or any physical condition connected with the
11 human mouth;

12 13. Taking impressions of the teeth and jaws;

13 14. Furnishing, supplying, constructing, reproducing, or
14 repairing, or offering to furnish, supply, construct, reproduce, or
15 repair, prosthetic dentures, sometimes known as plates, bridges, or
16 other substitutes for natural teeth for the user or prospective user
17 thereof;

18 15. Adjusting or attempting to adjust any prosthetic denture,
19 bridge, appliance, or any other structure to be worn in the human
20 mouth;

21 16. Diagnosing, making, and adjusting appliances to artificial
22 casts of malposed teeth for treatment of the malposed teeth in the
23 human mouth, without instructions;

1 17. Writing a laboratory prescription to a dental laboratory or
2 dental laboratory technician for the construction, reproduction or
3 repair of any appliance or structure to be worn in the human mouth;

4 18. Owning, maintaining, or operating an office or offices by
5 holding a financial interest in same for the practice of dentistry;
6 or

7 19. Any other procedure otherwise defined in the State Dental
8 Act requiring a valid license or permit to perform while the person
9 does not hold such valid license or permit issued by the Board.

10 B. The fact that a person uses any dental degree, or
11 designation, or any card, device, directory, poster, sign or other
12 media representing oneself to be a dentist shall be prima facie
13 evidence that the person is engaged in the practice of dentistry;
14 provided that nothing in this section shall be so construed as to
15 prevent the following:

16 1. Physicians or surgeons, who are licensed under the laws of
17 this state, from administering any kind of treatment coming within
18 the province of medicine or surgery;

19 2. The practice of dentistry in the discharge of the person's
20 official duties by dentists in the United States Army, the United
21 States Navy, the United States Air Force, the United States Marine
22 Corps, the United States Coast Guard, the United States Public
23 Health Service, or the United States Veterans Administration;

1 3. Dental schools or colleges, as now conducted and approved,
2 or as may be approved, and the practice of dentistry by students in
3 dental schools, colleges or hospitals, approved by the Board, when
4 acting under the direction and supervision of licensed dentists or
5 dentists holding properly issued permits acting as instructors;

6 4. Acts of a dental clinician or other participant at a dental
7 educational meeting or at an accredited dental college, when no fee
8 is charged to or paid by a patient;

9 5. The practice of dental hygiene, as defined herein, by a
10 person granted a license by the Board;

11 6. The performing of acts by a dental assistant who performs
12 the acts under the general, direct supervision or direct visual
13 supervision of a dentist and in accordance with the provisions of
14 the State Dental Act and the rules promulgated by the Board; or

15 7. The fabrication of dental appliances pursuant to a
16 laboratory prescription of a dentist, by a dental laboratory
17 technician in a dental laboratory using inert materials and
18 mechanical devices for the fabrication of any restoration, appliance
19 or thing to be worn in the human mouth.

20 C. Any auxiliary health care provider, licensed or permitted by
21 the state that is working under the supervision of a dentist, shall
22 be limited to practicing within the scope of dentistry.
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1 SECTION 4. AMENDATORY 59 O.S. 2021, Section 328.21, as
2 last amended by Section 5, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
3 2025, Section 328.21), is amended to read as follows:

4 Section 328.21. A. No person shall practice dentistry, dental
5 hygiene, or dental assisting without first applying for and
6 obtaining a license from the Board of Dentistry.

7 B. Application shall be made to the Board in writing and shall
8 be accompanied by the fee established by the rules of the Board,
9 together with satisfactory proof that the applicant:

10 1. Is of good moral character;

11 2. Is twenty-one (21) years of age, or over, at the time of
12 making application to practice dentistry or eighteen (18) years of
13 age, or over, if the applicant is to practice dental hygiene;

14 3. Has passed a written theoretical examination and a clinical
15 examination approved by the Board within the previous five (5)
16 years; and

17 4. Has passed a written jurisprudence examination over the
18 rules and laws affecting dentistry in this state.

19 C. An application from a candidate who desires to secure a
20 license from the Board to practice dentistry or dental hygiene in
21 this state shall be accompanied by satisfactory proof that the
22 applicant:

23 1. Is a graduate of ~~an~~ a United States or Canadian accredited
24 dental college, if the applicant is to practice dentistry;

1 2. Is a graduate of ~~an~~ a United States or Canadian accredited
2 dental hygiene program, if the applicant is to practice dental
3 hygiene; and

4 3. Has passed all portions of the National Board Dental
5 Examination or the National Board Dental Hygiene Examination.

6 D. Pursuant to Section 328.15 of this title, the Board may
7 affiliate as a member state, and accept regional exams from the
8 ~~Commission on Dental Competency Assessments (CDCA-WREB-CITA)~~
9 American Board of Dental Examiners (ADEX) if the following
10 requirements are included:

11 1. For dental licensing the following components on a live
12 patient or manikin:

13 a. a fixed prosthetic component of the preparation of an
14 anterior all porcelain crown and the preparation of a
15 three-unit posterior bridge,

16 b. a periodontal component,

17 c. an endodontic component,

18 d. an anterior class III and posterior class II
19 restorative component,

20 e. a diagnosis and treatment planning section as approved
21 by the Board, as specified in Section 328.15 of this
22 title, and
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1 f. the Board may determine equivalencies based on
2 components of other exams for the purpose of
3 credentialing; or

4 2. For dental hygienists licensing the following components on
5 a live patient or manikin:

6 a. clinical patient treatments with an evaluation of
7 specific clinical skills, and

8 b. evaluation of the candidate's compliance with
9 professional standards during the treatment as
10 approved by the Board in Section 328.15 of this title
11 and shall include:

12 (1) extra/intra oral assessment,

13 (2) periodontal probing, and

14 (3) scaling/subgingival calculus removal and
15 supragingival deposit removal.

16 3. The Board President may authorize the approval of a regional
17 or state exam, which includes the components listed in paragraphs 1
18 and 2 of this subsection, for any person holding a dental or dental
19 hygiene license in excess of ten (10) years with no Board action.

20 E. When the applicant and the accompanying proof are found
21 satisfactory, the Board shall notify the applicant to appear for the
22 jurisprudence examination at the time and place to be fixed by the
23 Board. A dental student or a dental hygiene student in the
24 student's last semester of a dental or dental hygiene program,

1 having met all other requirements, may make application and take the
2 jurisprudence examination with a letter from the dean of the dental
3 school or director of the hygiene program stating that the applicant
4 is a candidate for graduation within the next six (6) months.

5 F. The Board shall require every applicant for a license to
6 practice dentistry or dental hygiene to submit, for the files of the
7 Board, a copy of a dental degree or dental hygiene degree, an
8 official transcript, a recent photograph duly identified and
9 attested, and any other information as required by the Board.

10 G. Any applicant who fails to pass the jurisprudence
11 examination may apply for a second examination, in which case the
12 applicant shall pay a reexamination fee as established by the
13 statutes or rules of the State Dental Act.

14 H. A dentist or dental hygienist currently licensed in another
15 state having met the qualifications in paragraphs 1 through 3 of
16 subsections B and C of this section may apply for a license by
17 credentials upon meeting the following:

18 1. A dentist holding a general dentist license in good standing
19 and having practiced for at least five hundred (500) hours within
20 the previous five (5) years immediately prior to application and
21 having passed a regional examination substantially equivalent to the
22 requirements for this state may apply for licensure by credentials;

23 2. A dental hygienist holding a dental hygiene license in good
24 standing and having practiced for at least four hundred twenty (420)

1 hours within the previous five (5) years immediately prior to
2 application and having passed a regional examination substantially
3 equivalent to the requirements for this state may apply for
4 licensure by credentials. Applicants for credentialing must
5 include:

6 a. a letter of good standing from all states in which the
7 applicant has ever been licensed, and

8 b. any other requirements as set forth by the rules;

9 3. An applicant applying for a dental or dental hygiene license
10 by credentials shall only be required to pass the jurisprudence
11 portion of the examination requirements as set forth in paragraph 4
12 of subsection B of this section; and

13 4. The spouse of an active duty military member pursuant to a
14 current permanent change of station order from the military who was
15 actively licensed in another state for the previous two (2) years
16 shall be eligible for a license or permit pursuant to the
17 requirements listed in 50 U.S.C., Section 4025(a).

18 I. 1. There shall be seven types of advanced procedures
19 available for dental hygienists upon completion of a ~~Commission on~~
20 ~~Dental Accreditation (CODA)~~ approved program, course, or
21 certification program that has been approved by the Board:

22 a. administration of nitrous oxide,

23 b. administration of local anesthesia,

24 c. neuromodulator administration,

- 1 d. therapeutic use of lasers,
2 e. phlebotomy,
3 f. venipuncture, and
4 g. elder care and public health pursuant to Section
5 328.58 of this title.

6 2. A dental hygienist holding an advanced procedure permit or
7 credential in any other state for two (2) years shall be eligible
8 for the advanced procedure permit by credentials; provided, that
9 application for the advanced procedure permit by credentials for
10 administration of local anesthesia shall additionally require proof
11 of passage of such advanced procedure in a ~~CDCA-WREB-CITA~~ an
12 American Board of Dental Examiners (ADEX) exam or another program or
13 certification authorized by the Board.

14 3. For all advanced procedures other than administration of
15 local anesthesia, a dental hygienist may apply by filling out an
16 application with required documentation of education, training as
17 required by state law and rules of the Board or verification of
18 active practice for the previous two (2) years of the advanced
19 procedure in a dental office. A dental hygienist licensed by the
20 Board prior to January 30, 2024, shall be eligible for the advanced
21 procedure of therapeutic use of lasers upon submission of an
22 affidavit attesting to two (2) years of practice using lasers.
23
24

1 4. All advanced procedures shall be added to the dental hygiene
2 license upon ~~approval~~ verification of documentation as listed in
3 paragraphs 2 and 3 of this subsection.

4 J. All licensees and permit holders shall display the current
5 permit or license in a visible place within the dental office or
6 treatment facility.

7 K. The Board shall have the authority to temporarily change
8 requirements of an examination due to availability or changes in the
9 examination format, not to exceed one (1) year.

10 L. During a year in which governmental officials have declared
11 a health pandemic, a state or federal disaster, or other natural or
12 man-made disaster, the Board shall have the authority through a
13 resolution to change or make allowances in requirements of all
14 candidates for licensure and issue temporary licenses for extended
15 periods of time or as needed until the event passes. The resolution
16 shall have a beginning and an end date and shall automatically
17 expire no less than thirty (30) days after the end of the disaster
18 is declared by governmental officials.

19 M. Every licensee or permit holder shall have an official
20 address and email address listed with the Board. Every licensee or
21 permit holder shall update the address within thirty (30) calendar
22 days of moving. Official notification of any action of the Board
23 adverse to a licensee or permit holder including but not limited to
24 notification of license or permit cancellation due to nonrenewal,

1 notice of a formal complaint, or a decision of the hearing panel or
2 board, shall be served to the licensee or permit holder by
3 registered mail at the official address, in person, to the
4 licensee's or permit holder's attorney, by agreement of the
5 individual, by a process server, or by an investigator of the Board
6 pursuant to Section 2004 of Title 12 of the Oklahoma Statutes.

7 SECTION 5. AMENDATORY 59 O.S. 2021, Section 328.22, as
8 amended by Section 3, Chapter 220, O.S.L. 2023 (59 O.S. Supp. 2025,
9 Section 328.22), is amended to read as follows:

10 Section 328.22. A. 1. The Board of Dentistry may issue a
11 dental specialty license authorizing a dentist to represent himself
12 or herself to the public as a specialist, and to practice as a
13 specialist, in a dental specialty.

14 2. No dentist shall represent himself or herself to the public
15 as a specialist or practice as a specialist as listed in this
16 paragraph, unless the individual:

- 17 a. has successfully completed an advanced dental
18 specialty educational program accredited by the
19 Commission on Dental Accreditation, or has met the
20 board certification requirements and is recognized as
21 a current board certified member of a dental specialty
22 organization or association recognized by the National
23 Commission on Recognition of Dental Specialties and
24 Certifying Boards,

b. has passed the jurisprudence examination covering the State Dental Act, rules and state laws, ~~and~~

c. has passed a regional exam as defined in subsection D of Section 328.21 of this title, or is board certified in their specialty as described in subsection A of this section, and

d. has completed any additional requirements set forth in state law or rules and has been issued a dental specialty license by the Board.

3. Specialty licenses recognized by the Board shall include:

- a. dental public health,
- b. endodontics,
- c. oral and maxillofacial surgery,
- d. oral and maxillofacial radiology,
- e. orthodontics and dentofacial orthopedics,
- f. pediatric dentistry,
- g. periodontics,
- h. prosthodontics,
- i. oral and maxillofacial pathology,
- j. dental anesthesiology,
- k. oral medicine, and
- l. orofacial pain.

B. 1. At the time of application, if the dentist has ever been licensed in any other state, he or she shall provide a letter of

1 good standing from such state before the Board may issue a specialty
2 license.

3 2. In conducting an investigation of an applicant who has
4 applied for a dental specialty license pursuant to this subsection,
5 the Board shall require of the applicant disclosure of the same
6 background information as is required of an applicant for a license
7 to practice dentistry in this state.

8 C. Any person holding an Oklahoma specialty license that does
9 not have an Oklahoma general dentistry license shall be limited to
10 practicing that specialty for which they hold a license.

11 D. The Board may use the American Dental Association National
12 Commission on Recognition of Dental Specialties and Certifying
13 Boards guidelines or the guidelines of another nationally recognized
14 dental association or board for the purpose of defining a specialty
15 practice area not otherwise defined herein.

16 SECTION 6. AMENDATORY 59 O.S. 2021, Section 328.23, is
17 amended to read as follows:

18 Section 328.23. A. The President of the Board, upon
19 verification that a person meets the requirements provided for in
20 this section and any other requirements provided for in the State
21 Dental Act, may issue an emergency temporary license to practice
22 dentistry for thirty (30) days. A temporary license may be extended
23 but shall not exceed ninety (90) days or the next available
24 regularly scheduled Board meeting.

1 B. The President of the Board, upon verification that a person
2 meets the requirements provided for in the State Dental Act, may
3 issue an emergency temporary license to practice dental hygiene,
4 which shall expire as of the date of the next dental hygiene
5 clinical examination in Oklahoma, as required by the Board.

6 C. An active duty military spouse residing with the active duty
7 member having met the requirements for licensure shall be eligible
8 for a temporary license.

9 D. Any applicant requesting an emergency temporary license
10 shall submit a letter explaining the exigent circumstances along
11 with all application materials. The determination of whether or not
12 to grant the emergency temporary license based upon the exigent
13 circumstances shall be at the sole discretion of the President or
14 acting President of the Board.

15 E. A holder of a temporary license to practice dentistry or
16 dental hygiene shall have the same rights and privileges and be
17 governed by the State Dental Act and the rules of the Board in the
18 same manner as a holder of a permanent license to practice dentistry
19 and dental hygiene.

20 F. The President of the Board may authorize patient treatment
21 and care by individuals taking the ~~Commission on Dental Competency~~
22 ~~Assessments (CDCA) or the Western Regional Examining Board exam~~
23 American Board of Dental Examiners (ADEX), or other regional exams
24 as approved by the Board, in order for such individuals to complete

1 criteria related to Board examinations. The Board may authorize
2 specialty examinations to be given throughout the year as needed.

3 SECTION 7. AMENDATORY 59 O.S. 2021, Section 328.23a, as
4 last amended by Section 4, Chapter 46, O.S.L. 2024 (59 O.S. Supp.
5 2025, Section 328.23a), is amended to read as follows:

6 Section 328.23a. A. There is established a special volunteer
7 license for dentists and a special volunteer license for dental
8 hygienists who are retired from active practice or out-of-state
9 licensees in active practice who are in the Oklahoma Medical Reserve
10 Corps or assisting with emergency management, emergency operations
11 or hazard mitigation in response to any emergency, man-made disaster
12 or natural disaster, or participating in public health initiatives,
13 disaster drills and community service events that are endorsed by a
14 city or county health department or the State Department of Health
15 and wish to donate their expertise for the dental care and treatment
16 of indigent and needy persons of the state. A special volunteer
17 license may also be issued for any live patient training approved by
18 the Board of Dentistry. The special volunteer license shall be:

- 19 1. Issued by the Board of Dentistry to eligible persons;
- 20 2. Issued without the payment of an application fee, license
21 fee or renewal fee;
- 22 3. Issued or renewed without any continuing education
23 requirements for a period less than one (1) calendar year; and
- 24 4. Issued for one (1) calendar year or part thereof.

1 B. A special volunteer license may be issued for a dentist or
2 dental hygienist who is on active duty military service. This
3 license shall not be subject to paragraph 4 of subsection A of this
4 section and may be issued for the time period of the tour of duty.

5 C. A dentist or dental hygienist must meet the following
6 requirements to be eligible for a special volunteer license:

7 1. Completion of a special volunteer dental or dental hygiene
8 license application including documentation of the dental or dental
9 hygiene school graduation and practice history;

10 2. Documentation that the dentist or dental hygienist has been
11 previously issued a full and unrestricted license to practice
12 dentistry or dental hygiene in this state or in another state of the
13 United States and that he or she has never been the subject of any
14 reportable medical or dental disciplinary action in any
15 jurisdiction. If the dentist or dental hygienist is licensed in
16 more than one state and any license of the licensee is suspended,
17 revoked, or subject to any agency order limiting or restricting
18 practice privileges, or has been voluntarily terminated under threat
19 of sanction, the dentist or dental hygienist shall be ineligible to
20 receive a special volunteer license;

21 3. Acknowledgement and documentation that the dentist's or
22 dental hygienist's practice under the special volunteer license will
23 be exclusively and totally devoted to providing dental care to needy
24 and indigent persons in this state;

1 4. Acknowledgement and documentation that the dentist or dental
2 hygienist will not receive or have the expectation to receive any
3 payment or compensation, either direct or indirect, for any dental
4 services rendered under the special volunteer license; and

5 5. A listing of all locations and dates that the person will be
6 completing volunteer work under the special volunteer license.

7 D. The Board of Dentistry shall have jurisdiction over
8 dentists, dental hygienists, dental assistants and dental
9 technicians who volunteer their professional services in the state.
10 Dental assistants and dental technicians shall work under the direct
11 supervision of a dentist. A dental assistant may work under general
12 supervision of a dentist to assist a hygienist with a procedure that
13 the hygienist is allowed to perform under general supervision as
14 listed in Section 328.34 of this title.

15 E. Dental assistants may be issued a volunteer permit at the
16 request of an entity that provides dental services to the needy.
17 Volunteers in a volunteer initiative who are not dentists or dental
18 hygienists shall be named and provided on a list to the Board by the
19 entity hosting the volunteer initiative with any other requirements
20 as set forth by the Board. The Board shall provide written
21 documentation to the host entity designating all persons who may
22 participate in the volunteer initiative including authorization of
23 the timetable requested by the host entity for granting licensure
24 exemption. Any person working under a volunteer dental assistant

1 permit shall not receive payment or compensation for any services
2 rendered under the volunteer dental assistant permit. Volunteer
3 dental assistant permits shall be limited to specific dates and
4 locations of services to be provided.

5 F. All persons providing care shall do so under the provisions
6 specified in Section 328.1 et seq. of this title or rules
7 promulgated by the Board. Only those functions authorized by law or
8 administrative rule shall be performed by the named person approved
9 by the Board.

10 G. Volunteers shall not use sedation or general anesthesia
11 during volunteer procedures.

12 H. Volunteers shall use a form to be provided by the Board for
13 any patient with clear instructions for any and all follow-up care.

14 I. At any time, the Board shall revoke a volunteer license
15 based on documentation of failure to participate according to state
16 laws or administrative rules.

17 J. A special volunteer license shall be restricted to services
18 provided at the locations listed on the application or for a
19 specific not-for-profit treatment provider group as approved by the
20 Board.

21 K. A special volunteer license may be issued to a dentist with
22 an active license in good standing in another state for the purpose
23 of participating in a continuing education class that includes live
24 patient treatment as a part of the training program.

1 SECTION 8. AMENDATORY 59 O.S. 2021, Section 328.24, as
2 last amended by Section 6, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
3 2025, Section 328.24), is amended to read as follows:

4 Section 328.24. A. No person shall practice as a dental
5 assistant without first applying for and obtaining a permit from the
6 Board of Dentistry.

7 B. The application shall be made to the Board in writing and
8 shall be accompanied by the fee established by the Board, together
9 with satisfactory proof that the applicant passes a background check
10 with criteria established by the Board.

11 C. Every dental assistant receiving a permit shall complete a
12 class on infection control as approved by the Board within one (1)
13 year from the date of receipt of the permit. Failure to complete
14 the class shall be grounds for discipline pursuant to Section
15 328.29a of this title.

16 D. There shall be eight types of expanded duty permits
17 available for dental assistants upon completion of a program
18 approved by the Commission on Dental Accreditation (CODA) or a
19 course that has been approved by the Board:

- 20 1. Radiation safety;
- 21 2. Coronal polishing and topical fluoride;
- 22 3. Sealants;
- 23 4. Assisting in the administration of nitrous oxide;
- 24 5. Phlebotomy;

1 6. Venipuncture;

2 7. Elder care and public health; or

3 8. Oral maxillofacial surgery. An oral maxillofacial surgery
4 expanded duty permit shall be available to a dental assistant who
5 has met the requirements as listed in Section 328.25 of this title
6 and assists a dentist, pediatric dentist, or oral maxillofacial
7 surgeon who holds a parenteral or general anesthesia permit;
8 provided, only the dentist, pediatric dentist, or oral maxillofacial
9 surgeon, or an anesthesiologist or a Certified Registered Nurse
10 Anesthetist, may administer anesthesia and assess the patient's
11 level of sedation and only the dentist, pediatric dentist, or oral
12 maxillofacial surgeon may perform surgery.

13 All expanded duties shall be added to the dental assistant
14 permit upon approval by the Board.

15 E. The training requirements for all expanded duty permits
16 shall be set forth by the Board. A program that is not CODA-
17 certified must meet the standards set forth and be approved by the
18 Board.

19 F. An applicant for a dental assistant permit who has graduated
20 from a dental assisting program accredited by CODA and has passed
21 the jurisprudence examination shall receive all expanded duty
22 permits provided for in subsection D of this section if the course
23 materials approved by the Board are covered in the program.

1 G. A dental assistant who holds an out-of-state dental
2 assistant permit with expanded duties may apply for credentialing
3 and reciprocity for a dental assistant permit including any expanded
4 duty by demonstrating the following:

5 1. The dental assistant has had a valid dental assistant permit
6 in another state for a minimum of two (2) years and is in good
7 standing;

8 2. The dental assistant has had a valid expanded duty in
9 another state for a minimum of one (1) year; and

10 3. The dental assistant provides a certificate or proof of
11 completion of an educational class for the expanded duty and that
12 the dental assistant has been providing this treatment to dental
13 patients while working as a dental assistant in a dental office for
14 one (1) year.

15 H. Any person having served in the military as a dental
16 assistant shall receive credentialing and reciprocity for expanded
17 functions by demonstrating the following:

18 1. Proof of military service in excess of two (2) years with
19 any certifications or training in the expanded function areas; and

20 2. Verification from the commanding officer of the medical
21 program or the appropriate supervisor stating that the dental
22 assistant provided the expanded functions on patients in the
23 military dental facility for a minimum of one (1) year within the
24 past five (5) years.

1 I. Dental assistants are required to work under the direct
2 supervision of a dentist for all procedures with the following
3 exceptions:

4 a. a dental assistant may complete Radiation Safety under
5 the general supervision of a dentist,

6 b. a dental assistant may work under general supervision
7 of a dentist to assist a hygienist with a procedure
8 that the hygienist is allowed to perform under general
9 supervision.

10 SECTION 9. AMENDATORY 59 O.S. 2021, Section 328.29a, as
11 last amended by Section 11, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
12 2025, Section 328.29a), is amended to read as follows:

13 Section 328.29a. A. The following acts or occurrences by a
14 dental assistant shall constitute grounds for which the penalties
15 specified in Section 328.44a of this title may be imposed by the
16 Board of Dentistry or be the basis for denying a new applicant any
17 license or permit issued by the Board:

- 18 1. Any of the causes now existing in the laws of this state;
19 2. A violation of the provisions of the State Dental Act; or
20 3. A violation of the rules of the Board promulgated pursuant
21 to the State Dental Act.

22 B. The Board shall also have the power to act upon a petition
23 by a dental assistant for reinstatement to good standing. The Board
24 shall keep a record of the evidence and proceedings in all matters

1 involving the revocation or suspension of a permit, censure or
2 probation of a dental assistant. The Board shall make findings of
3 fact and a decision thereon. Notification of the licensee or permit
4 holder shall occur pursuant to Section 328.21 of this title.

5 C. The decision shall be final unless the dental assistant
6 appeals the decision as provided by the State Dental Act.

7 D. The Board shall have power to revoke or suspend the permit,
8 censure, or place on probation a dental assistant for a violation of
9 one or more of the following:

10 1. Pleading guilty or nolo contendere to, or being convicted
11 of, a felony crime that substantially relates to the occupation of a
12 dental assistant and poses a reasonable threat to public safety, or
13 a violation of federal or state controlled dangerous substances
14 laws;

15 2. Presenting to the Board a false application or documentation
16 for a permit;

17 3. Being, by reason of persistent inebriety or addiction to
18 drugs, incompetent to continue to function as a dental assistant;

19 4. Functioning outside the general, direct or direct visual
20 supervision of a dentist for a procedure authorized by this act;

21 5. Performing any function prohibited by Chapter 15 of the
22 Oklahoma Administrative Code or any violation that would be a
23 violation for a dentist or hygienist under Section 328.32 or 328.33
24

1 of this title, or any other duty not assignable to a dental
2 assistant; or

3 6. Failure to secure an annual registration as specified in
4 Section 328.41 of this title.

5 E. The Board's review panel, as set forth in Section 328.43a of
6 this title, upon concurrence with the president of the Board, may
7 determine that an emergency exists to temporarily suspend the permit
8 of a dental assistant if the panel finds that public health, safety
9 or welfare imperatively requires emergency action. The panel may
10 conduct a hearing pursuant to Section 314 of Title 75 of the
11 Oklahoma Statutes for the temporary suspension.

12 F. As used in this section:

13 1. "Substantially relates" means the nature of criminal conduct
14 for which the person was convicted has a direct bearing on the
15 fitness or ability to perform one or more of the duties or
16 responsibilities necessarily related to the occupation; and

17 2. "Poses a reasonable threat" means the nature of criminal
18 conduct for which the person was convicted involved an act or threat
19 of harm against another and has a bearing on the fitness or ability
20 to serve the public or work with others in the occupation.

21 SECTION 10. AMENDATORY 59 O.S. 2021, Section 328.31, is
22 amended to read as follows:

23 Section 328.31. A. Professional entities formed pursuant to
24 the Professional Entity Act, for the purpose of rendering

1 professional services by a dentist, shall be subject to all of the
2 provisions of the State Dental Act, except that professional
3 entities shall not be required to obtain a license from the Board of
4 Dentistry. Individuals who hold a license issued by the Board shall
5 be responsible, pursuant to the State Dental Act, for their personal
6 conduct without regard to the fact that they are acting as an owner,
7 manager, agent or employee of, or the holder of an interest in, a
8 professional entity.

9 B. Professional entities formed for the purpose of rendering
10 professional services by a dentist must register with the Board
11 before rendering such services and must update the registration
12 during the renewal period of each year. The Board shall:

13 1. Provide the form and establish the fee for the registration
14 and update; and

15 2. Maintain a registry of all such professional entities; ~~and~~

16 ~~3. Publish annually a summary of the registry.~~

17 C. The Board is authorized to issue certificates pursuant to
18 Section 804 of Title 18 of the Oklahoma Statutes and shall maintain
19 a record of each certificate issued.

20 D. Enforcement actions by the Board for violation of the State
21 Dental Act or the rules of the Board may be brought against a
22 professional entity as well as against any individual who is or has
23 acted as an owner, manager, agent or employee of, or the holder of
24 an interest in, the professional entity.

1 SECTION 11. AMENDATORY 59 O.S. 2021, Section 328.31b, as
2 last amended by Section 13, Chapter 273, O.S.L. 2025 (59 O.S. Supp.
3 2025, Section 328.31b), is amended to read as follows:

4 Section 328.31b. A. Every dental office or treatment facility,
5 whether individual, group or multi-doctor practice operating under a
6 name, trade name or other professional entity shall maintain written
7 records on each patient treated at the facility and shall make these
8 records available to the Board of Dentistry and other regulatory
9 entities or be subject to the penalties as set forth in Section
10 328.44a of this title.

11 B. Each licensed dentist shall maintain written records on each
12 patient that shall contain, at a minimum, the following information
13 about the patient:

14 1. A current health history listing known illnesses, other
15 treating physicians and current medications prescribed;

16 2. Results of a clinical examination, including a physical
17 intraoral examination and head and neck examination, tests
18 conducted, and any lab results including the identification, or lack
19 thereof, of any oral pathology or diseases;

20 3. Treatment plan proposed by the dentist; and

21 4. Treatment rendered to the patient. The patient record shall
22 clearly identify the dentist and the dental hygienist or dental
23 assistant providing the treatment with the dentist, specialty or
24 dental hygienist license number. The patient record shall include

1 documentation of any medications prescribed, administered or
2 dispensed to the patient.

3 C. Prior to a dentist prescribing, diagnosing, or overseeing
4 patient treatment for any dental appliance, the patient shall be a
5 patient of record and the dentist shall conduct an in-person patient
6 examination.

7 D. 1. The name of the dentist or dentists actually providing
8 the dental services to the patient shall appear on all insurance
9 claim forms, ~~billing invoices, or statements sent to the patient and~~
10 ~~on all receipts if any are given to the patient.~~

11 2. Treatment records shall be maintained for each patient that
12 clearly identify the dentist or dentists, hygienists or dental
13 assistants who performed all dental services for the patient.

14 E. Whenever patient records are released or transferred, the
15 dentist releasing or transferring the records shall maintain either
16 the original records or copies thereof and a notation shall be made
17 in the retained records indicating to whom the records were released
18 or transferred.

19 F. All claims being submitted for insurance must be signed,
20 stamped or have an electronic signature by the treating dentist.

21 G. Patient records may be kept in an electronic data format,
22 provided that the dentist maintains a backup copy of information
23 stored in the data processing system using disk, tape or other
24 electronic back-up system and that backup is updated on a regular

1 basis, at least weekly, to assure that data is not lost due to
2 system failure. Any electronic data system shall be capable of
3 producing a hard copy on demand.

4 H. All patient records shall be maintained for seven (7) years
5 from the date of treatment.

6 I. Each licensed dentist shall retain a copy of each entry in
7 his or her patient appointment book, calendar, or such other log,
8 calendar, book, file or computer data used in lieu of an appointment
9 book for a period no less than seven (7) years from the date of each
10 entry thereon.

11 J. A licensee closing an office shall notify the Board in
12 writing and include the location of where the patient records will
13 be maintained.

14 SECTION 12. AMENDATORY 59 O.S. 2021, Section 328.34, as
15 amended by Section 6, Chapter 220, O.S.L. 2023 (59 O.S. Supp. 2025,
16 Section 328.34), is amended to read as follows:

17 Section 328.34. A. A dental hygienist may practice dental
18 hygiene under the supervision of a dentist in a dental office or
19 treatment facility. A dentist may employ not more than the
20 equivalent of three full-time dental hygienists for each dentist
21 actively practicing in the same dental office. Employing the
22 equivalent of three dental hygienists shall mean the employment or
23 any combination of full- or part-time dental hygienists not to
24 exceed one hundred twenty (120) hours per week per dentist.

1 B. 1. A dentist may delegate to a dental hygienist the
2 following procedures:

- 3 a. the duties and expanded duties authorized for dental
4 assistants by the State Dental Act or the rules of the
5 Board of Dentistry,
- 6 b. health history assessment pertaining to dental
7 hygiene,
- 8 c. dental hygiene examination and the charting of intra-
9 oral and extra-oral conditions, which include
10 periodontal charting, dental charting and classifying
11 occlusion,
- 12 d. dental hygiene assessment and treatment planning for
13 procedures authorized by the supervisory dentist,
- 14 e. prophylaxis, which means the removal of any and all
15 calcareous deposits, stains, accretions, or
16 concretions from the supragingival and subgingival
17 surfaces of human teeth, utilizing instrumentation by
18 scaler or periodontal curette on the crown and root
19 surfaces of human teeth, including rotary or power-
20 driven instruments. This paragraph shall not be
21 construed to prohibit the use of a prophy/polishing
22 cup or brush on the crowns of human teeth by a dental
23 assistant who holds a current expanded duty permit for
24

1 coronal polishing and topical fluoride issued by the
2 Board,

- 3 f. periodontal scaling and root planing,
- 4 g. dental hygiene nutritional and dietary evaluation,
- 5 h. placement of subgingival prescription drugs for
- 6 prevention and treatment of periodontal disease,
- 7 i. soft tissue curettage,
- 8 j. placement of temporary fillings,
- 9 k. removal of overhanging margins,
- 10 l. dental implant maintenance,
- 11 m. removal of periodontal packs,
- 12 n. polishing of amalgam restorations, and
- 13 o. other procedures authorized by the Board.

14 2. The procedures specified in subparagraphs b through o of
15 paragraph 1 of this subsection may be performed only by a dentist or
16 a dental hygienist.

17 3. Except as provided in subsections C and D of this section,
18 the procedures specified in paragraph 1 of this subsection may be
19 performed by a dental hygienist only on a patient of record and only
20 under the supervision of a dentist. The advanced procedures of
21 administration of nitrous oxide, therapeutic use of lasers and
22 administration of local anesthesia, may be performed under general
23 supervision and neuromodulator administration, ~~therapeutic use of~~
24 ~~lasers,~~ and phlebotomy and venipuncture shall be performed only

1 under the direct or indirect supervision of a dentist. The level of
2 supervision, whether direct, indirect, or general, for the advanced
3 procedure of elder care and public health pursuant to Section 7 of
4 this act shall be at the discretion of the supervisory dentist.
5 Authorization for general supervision shall be limited to a maximum
6 of thirteen (13) months following an examination by the supervisory
7 dentist of a patient of record.

8 C. 1. A dentist may authorize procedures to be performed by a
9 dental hygienist, without complying with the provisions of paragraph
10 3 of subsection B of this section, if:

- 11 a. the dental hygienist has at least two (2) years'
12 experience in the practice of dental hygiene,
- 13 b. the authorization to perform the procedures is in
14 writing and signed by the dentist, and
- 15 c. the procedures are performed during an initial visit
16 to a person in a treatment facility, or pursuant to
17 Section 7 of this act.

18 2. The person upon whom the procedures are performed must be
19 referred to a dentist after completion of the procedures performed
20 pursuant to paragraph 1 of this subsection.

21 3. A dental hygienist shall not perform a second set of
22 procedures on a person pursuant to this subsection until the person
23 has been examined and accepted for dental care by a dentist.

1 4. The treatment facility in which any procedure is performed
2 by a dental hygienist pursuant to this subsection shall note each
3 such procedure in the medical records of the person upon whom the
4 procedure was performed and list the dentist that authorized the
5 hygienist to perform the procedures signed by the hygienist.

6 D. A treatment facility may employ dental hygienists whose
7 services shall be limited to the examination of teeth and the
8 teaching of dental hygiene or as otherwise authorized by the Board.

9 E. The Board is authorized to prescribe, by rule, the
10 educational requirements for advanced procedures that may be
11 performed by a dental hygienist upon receipt of the advanced
12 procedures designated on his or her license. The advanced
13 procedures shall include the administration of local anesthesia, the
14 administration of nitrous oxide analgesia, neuromodulator
15 administration, therapeutic use of lasers, phlebotomy and
16 venipuncture, and elder care and public health pursuant to Section 7
17 of this act.

18 F. A dental hygienist shall not own or operate an independent
19 practice of dental hygiene.

20 G. Nothing in the State Dental Act shall be construed to
21 prohibit a dentist from performing any of the procedures that may be
22 performed by a dental hygienist.

23 H. Nothing in the State Dental Act shall be construed to allow
24 a dental assistant to work under the supervision of a dental

1 hygienist while acting under direct, indirect or general
2 supervision, except as provided by subsection I of Section 7 328.24
3 and Section 328.58 of this act title.

4 SECTION 13. AMENDATORY 59 O.S. 2021, Section 328.54, is
5 amended to read as follows:

6 Section 328.54. A. Any person conducting a diagnosis for the
7 purpose of prescribing medication or treatment or any other action
8 determined to be a dental practice as defined by the State Dental
9 Act, via the Internet or other telecommunications device on any
10 patient that is physically located in this state shall hold a valid
11 Oklahoma state dental license.

12 B. A "patient of record" may be established by teledentistry
13 for the purposes of an emergency or hygiene treatment if the patient
14 is physically located at the dental office or treatment facility and
15 the dentist is not readily available.

16 C. A dentist holding a valid dental license in Oklahoma may
17 consult, diagnose and treat a patient of record via synchronous or
18 asynchronous telecommunication between the patient and dentist. The
19 dentist must record all activities relating to teledentistry in the
20 patient record and must have an office location in Oklahoma
21 available for follow-up treatment and maintenance of records.

22 SECTION 14. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 328.21(a) of Title 59, unless
24 there is created a duplication in numbering, reads as follows:

1 A. The University of Oklahoma College of Dentistry shall
2 develop and implement a three-year pilot program to create a pathway
3 for foreign trained dentists to practice in the state under the
4 conditions of this section.

5 B. A dentist, having received a dental degree or certificate in
6 a foreign country that is a non-United States or Canadian accredited
7 program, may apply for a dental hygiene license upon meeting the
8 following requirements:

9 1. The applicant must provide proof of a valid dental education
10 and degree, certificate or other proof of acceptable by the Board
11 and proof of lawful practice of dentistry for the past two (2) years
12 in a foreign country. All documents shall be translated to English
13 and verifiable by the Board;

14 2. Successful passage of the ADEX dental hygiene licensure
15 exam;

16 3. Successful passage of the Test of English as a Foreign
17 Language (TOEFL). The Applicant can provide proof of passing the
18 TOEFL exam within the past five (5) years;

19 4. Successful completion of an evaluation program to practice
20 dental hygiene conducted by the University of Oklahoma College of
21 Dentistry;

22 5. Demonstrated that the education and clinical training
23 received abroad is substantially equivalent to the standards
24 required of dental hygienists in the state, as determined by the

1 Board, the University of Oklahoma College of Dentistry, and the
2 University of Oklahoma Department of Diagnostic and Preventive
3 Sciences Dental Hygiene program;

4 6. Successful completion of the Oklahoma Jurisprudence exam;
5 and

6 7. Successful passage of the National Board of Dental Hygiene
7 Examination (NBDHE).

8 SECTION 15. This act shall become effective July 1, 2026.

9 SECTION 16. It being immediately necessary for the preservation
10 of the public peace, health or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

13
14 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
15 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended and Coauthored.
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